



Town and Country Planning Regulations (London) (Indemnity) Act 1970

1970 CHAPTER 57

An Act to grant an indemnity in respect of the delay in laying before Parliament certain regulations made under section 24 of the London Government Act 1963, and to continue in force the provision whereby regulations under that section are subject to annulment in accordance with the Statutory Instruments Act 1946.

[17th December 1970]

WHEREAS regulations made under section 24 of the London Government Act 1963 are subject to annulment in pursuance of a resolution of either House of Parliament;

And whereas the regulations so made which are specified in this Act were, by oversight, not laid before Parliament until the 10th November 1970;

And whereas the words in section 29(6) of the London Government Act 1963 whereby regulations made under section 24 are subject to annulment as aforesaid were also, by oversight, repealed by the Town and Country Planning Act 1968 from a date to be appointed under that Act, but the repeal has not been brought into force:

Now, therefore, be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Minister of Housing and Local Government for the time being and all other persons having, in the case of the regulations specified in subsection (2) below, any duty to secure compliance with the requirements of section 4 of the Statutory Instruments Act 1946 are, and each of them is, hereby freed, Indemnity. 1946 c. 36.

discharged and indemnified from and against all consequences whatsoever, if any, incurred or to be incurred by him or them by reason of any default in complying in the case of those regulations with the requirements of that section, and those requirements shall be deemed to have been, by the laying of the regulations before Parliament on the day above mentioned, as duly complied with as if the regulations had been laid before Parliament before they came into operation.

(2) The regulations in question in this Act are—

S.I. 1965/679
(1965 I,
p. 2097).

(a) the Town and Country Planning (Local Planning Authorities in Greater London) Regulations 1965, which were made on the 29th March 1965 and came into operation on the 1st April 1965; and

S.I. 1967/430
(1967 I,
p. 1367).

(b) the Town and Country Planning (Local Planning Authorities in Greater London) (Amendment) Regulations 1967, which were made on the 16th March 1967 and came into operation on the 1st April 1967.

Future
regulations
to be subject to
annulment.
1962 c. 38.
1963 c. 33.
1968 c. 72.

2. Section 217(2) of the Town and Country Planning Act 1962 (whereby regulations under that Act are, with certain exceptions, subject to annulment in pursuance of a resolution of either House of Parliament) shall continue to apply also to regulations under section 24 of the London Government Act 1963 in accordance with section 29(6) of that Act; and accordingly the repeals in section 29(6) which are included in Schedule 11 to the Town and Country Planning Act 1968 shall be amended by the omission from that Schedule of the words “ and 217(2) ”.

Short title.

3. This Act may be cited as the Town and Country Planning Regulations (London) (Indemnity) Act 1970.